

**BEFORE THE
FEDERAL MARITIME COMMISSION**

20230930-DK-BUTTERFLY-1, INC. f/k/a BED BATH &
BEYOND INC., *Complainant*,

v.

EVERGREEN LINE JOINT SERVICE AGREEMENT
(FMC#011982) consisting of EVERGREEN MARINE
CORP. (TAIWAN) LTD., EVERGREEN MARINE (UK)
LIMITED, ITALIA MARITTIMA SpA, EVERGREEN
MARINE (HONG KONG) LTD., AND EVERGREEN
MARINE (SINGAPORE) PTE. LTD., *Respondents*.

DOCKET NO. 24-12

**RESPONDENTS' MOTION TO FILE UNDER SEAL
THE PARTIES' PREHEARING STATEMENT**

Respondents, Evergreen Line Joint Service Agreement (FMC#011982), Evergreen Marine Corp. (Taiwan) Ltd., Evergreen Marine (UK) Limited, Italia Marittima SpA, Evergreen Marine (Hong Kong) Ltd., and Evergreen Marine (Singapore) Pte. Ltd. (collectively “Evergreen” or “Respondents”) respectfully submit this Motion pursuant to Rule 5 of the Federal Maritime Commission’s (the “Commission”) Rules of Practice and Procedure (the “Rules”), 46 C.F.R. § 502.5(b), the Initial Order entered in this matter on February 28, 2024 (Dkt. 9), and the Protective Order entered in this matter on December 6, 2024 (Dkt. 29), seeking an order permitting Respondent to (1) file under seal with the Presiding Officer unredacted copies of the Joint Prehearing Statement, filed contemporaneously herewith, and (2) file on the public docket of this matter redacted copies of the Joint Prehearing Statement, filed contemporaneously herewith. Complainant joins in this request.

LEGAL STANDARDS

Commission Rules permit the Presiding Officer to issue an order requiring “that a trade secret or other confidential research, development, or commercial information not be disclosed or be disclosed only in a specific way.” 46 C.F.R. § 502.141(j)(1)(vii). Confidential treatment may be warranted to protect trade secrets and minimize dangers to private entities. *See United States v. Hubbard*, 650 F.2d 293, 315–16 (D.C. Cir. 1980). The Commission has stated that “protecting commercial entities’ trade secrets and confidential rates information is an important consideration.” *Mediterranean Shipping Company - Investigation For Compliance With §§ 41104(a) and 41102 of Demurrage Or Detention Charges Under the Charge Complaint Procedures of 46 U.S.C. § 41310*, Dkt. No. CC-001, 2023 WL 12052897 (F.M.C.), at *3 (FMC Sept. 29, 2023). Further, the Commission’s own regulations regarding service contracts filed with the Commission require confidentiality under 46 U.S.C. § 40502(b)(1) (“Each service contract entered into under this section by an individual ocean common carrier or an agreement shall be filed confidentially with the Federal Maritime Commission” and 46 C.F.R. § 530.4 (“All service contracts and amendments to service contracts filed with the Commission shall, to the full extent permitted by law, be held in confidence.”). Thus, under 46 C.F.R. § 502.5(b) and 46 C.F.R. § 530.4, service contracts and amendments thereto are *per se* confidential.

CONFIDENTIAL MATERIALS

The Joint Prehearing Statement includes material designated as confidential pursuant to the Protective Order in this matter. Specifically, the Joint Prehearing Statement quotes service contracts and amendments thereto and contractually agreed upon rates and pricing information privately negotiated between Respondents and Complainant. Such material is commercially sensitive information protected from public disclosure by 46 U.S.C. § 40502(b)(1) and 46 C.F.R.

§ 530.4. Such confidential material is identified in the Confidential – Restricted Version of the Joint Prehearing Statement submitted herewith by highlighted text, and is redacted in the proposed Public Version of the document. Disclosure of the highlighted material quoted from service contracts and/or amendments thereto, including but not limited to rates and pricing information related to the service contracts, would damage the commercial interests and competitiveness of Respondents. Indeed, as set forth above, the Commission’s own regulations regarding service contracts filed with the Commission require confidentiality under 46 U.S.C. § 40502(b)(1) (“Each service contract entered into under this section by an individual ocean common carrier or an agreement shall be filed confidentially with the Federal Maritime Commission” and 46 C.F.R. § 530.4 (“All service contracts and amendments to service contracts filed with the Commission shall, to the full extent permitted by law, be held in confidence.”). To the extent there is any view or possibility that such confidential information was previously published, this tribunal should not permit further repeated harm on the coattails of a prior wrong. Respondents are not seeking to redact the entire Joint Prehearing Statement, but only those limited excerpts from service contracts, amendments, and other documents.

For the foregoing reasons, Respondents respectfully request that:

1. Respondent be permitted to file a Confidential – Restricted Version of the Joint Prehearing Statement indicating with highlighting the quotation of terms from service contracts and/or amendments thereto, and highlighting rates or pricing information, and that such Confidential – Restricted Version be kept confidential and sealed; and

2. Respondents be permitted to file a Public Version of the Joint Prehearing Statement redacting the highlighted text contained in the Confidential – Restricted Version of the Joint Prehearing Statement.

Dated: May 18, 2026

Respectfully submitted,

BETANCOURT, GRECO, EVANS &
VIGNOCCHI LLC

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